

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY2GO CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

DOCKET NO. 25-14

Served: July 6, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER FOLLOWING STATUS CONFERENCE

On July 25, 2025, Complainant filed a Verified Complaint in this matter alleging that Respondent violated 46 U.S.C. § 40901(a) by operating as an ocean transportation intermediary (“OTT”) without a license. In general, Complainant alleges that Respondent, which was formed by Complainant’s former employees, diverted Complainant’s customers while utilizing Complainant’s license number and operational infrastructure. (Complaint, at 2-5). Complainant seeks a cease-and-desist order and reparations. (Complaint, at 6-7). After I denied Respondent’s Motion to Dismiss (*see* Order Denying Motion to Dismiss), Respondent answered and denied the allegations in the Complaint. (*See generally* Answer).

On June 23, 2026, Respondent filed Respondent’s Motion to Compel Discovery, Compel the Continued Deposition of the Corporate Representative of Way2Go Cargo Corp., and Extend Case Deadlines (“MTC”). In the MTC, Respondent asserts that it issued interrogatories and requests for production regarding Complainant’s damages, to which Complainant indicated complete responses were forthcoming. (MTC, at 1-7). Respondent argues that because Complainant has not yet supplemented its discovery responses, Respondent’s ability to defend itself has been potentially prejudiced. (MTC, at 8-11). Respondent also asks for the schedule to be extended. (MTC, at 11-12).

On July 1, 2026, Complainant filed a Response in Opposition to Motion to Compel (“MTC Opp.”). In it, Complainant asserts that it was not afforded an opportunity to confer regarding the MTC, that the MTC is untimely, and that Complainant’s ability to answer questions about damages depended on Respondent’s compliance with its own discovery obligations. (MTC Opp., at 1-3). Complainant nevertheless indicates that it will supplement its discovery responses by July 15, 2026, and that the case schedule should be amended. (MTC Opp., at 4-5).

In light of Complainant’s representation that it will supplement its discovery responses, and the fact that both parties agree an extension will be necessary, I held a status conference on July 6, 2026. Counsel for both parties attended.

At the status conference, the parties discussed the MTC, remaining discovery issues, and scheduling matters. In particular, I noted during the status conference that the MTC largely seeks discovery related to the issue of reparations. I also raised the question of whether reparations are available at all in the event Complainant is able to prove a violation of 46 U.S.C. § 40901(a), and noted that it is an issue that has yet to be resolved in this matter. Consistent with its Response in Opposition to the Motion to Compel, Complainant's counsel represented at the status conference that Complainant is able to produce documents and supplemental interrogatory answers by July 15, 2026.

At this time, it is unclear if the production and supplementation will moot the MTC. If it does, then the parties may be able to conduct their hearing in writing (in the form of briefing), and bypass the expert discovery that is contemplated in the current case schedule. (*See* Order Granting Fourth Joint Motion to Extend Scheduling Order Deadlines). Alternatively, if Respondent believes more information is needed on the issue of reparations, it would be good to resolve the issue of whether reparations are even available in this case as a legal matter before ordering additional discovery on the issue of reparations. Accordingly, after the June 15 production, the parties should meet-and-confer, and then inform me how they think this matter should proceed. Accordingly, it is

HEREBY ORDERED that Complainant is to produce documents and supplemental interrogatory answers no later than **July 15, 2026**. It is

FURTHER ORDERED that the MTC is held in abeyance. It is

FURTHER ORDERED that the parties are to meet-and-confer, and file an agreed-upon motion proposing a remaining case schedule no later than **July 22, 2026**.

Richard C.
Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge